

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch**

Date: December 12, 2007
Courtroom Deputy: J. Chris Smith
FTR Technician: Kathy Terasaki

Civil Action No. 05-cv-01917-RPM-MJW

ADEPT COMPUTER SOLUTIONS, INC., a California corporation,

Plaintiff,

Peter C. Forbes
Gary D. Aronson

v.

ZOLL DATA SYSTEMS, INC., a Delaware corporation,

Defendant.

Natalie M. Hanlon-Leh
James G. Sawtelle
Mary V. Sooter

COURTROOM MINUTES

Trial to Jury Day Eight

9:00 a.m. Court in session.

Plaintiff's representative Scott Pickett and defendant's representative David Brown present.

Jurors present.

9:02 a.m. Plaintiff's closing argument by Mr. Forbes.

Court instructs jurors.
Jurors excused.

10:15 a.m. Court in recess.

10:30 a.m. Court in session.

Jurors present.

10:32 a.m. Defendant's closing argument by Ms. Hanlon-Leh.

11:41 a.m. Plaintiff's rebuttal argument by Mr. Forbes.

Court instructs jurors.
Jurors excused.

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12:10 p.m. Court in recess.
1:10 p.m. Court in session.

Jurors present.

1:12 p.m. Jury instructions read to jurors by the Court.

Court Security Officer sworn.

Court instructs jurors.

Jurors excused to begin deliberations.

Counsel state there are no new objections and Court states previous stated objections to jury instructions are renewed and incorporated herein.

1:47 p.m. Court in recess.
4:25 p.m. Court in session.

Court states it has not received any communication from the jury and it intends to recess deliberations for the day.

Jurors present.

Court instructs jurors.

Jurors excused until 9:00 a.m. December 13, 2007.

4:37 p.m. Court in recess.

Trial continued. Total time: 6hrs. 27 min.